MODULE 05

Health, Safety and Labour Laws

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SAFETY HELMETS USED IN CONSTRUCTION

YELLOW



For labourer, heavy duty operation, general construction worker

WHITE



For manager, engineer, architect and supervisor

GREY



For site visitor

RED



For firefighters

BLUE



For electrician and technical operator

BROWN



For welders and worker with high heats

PINK



For manager, engineer, architect and supervisor

GREEN



For safety officer

SAFETY RULES IN CONSTRUCTION



Googles



Gloves



Shoes



High Visibility Jackets

SAFETY RULES IN CONSTRUCTION

2. Keep Site Clean and Organized

- Remove debris, scrap, and waste materials regularly.
- Keep walkways and work areas clear to prevent slips, trips, and falls.
- Use designated bins for garbage, metal scrap, and hazardous waste.
- Arrange tools and materials systematically for easy access.





SAFETY RULES IN CONSTRUCTION

3. Mark Hazardous Areas

- Clearly display warning signs (e.g., “Danger: Falling Objects,” “High Voltage”).
- Use safety cones, barricades, and caution tape around excavation pits, open manholes, and restricted zones.
- Provide adequate lighting in low-visibility or night-time working areas.
- Color code areas (e.g., red for danger zones, yellow for caution, green for safe exits).



SAFETY RULES IN CONSTRUCTION

Proper Storage of Tools and Materials

- Store heavy materials at ground level to avoid toppling hazards.
- Keep flammable and chemical materials in designated, ventilated storage rooms.
- Tools should be kept in toolboxes, racks, or lockable cabinets when not in use.
- Stack bricks, pipes, and steel rods securely to prevent rolling or collapsing.
- Ensure scaffolding planks and ladders are stored dry and in proper condition.

ROLES AND RESPONSIBILITIES IN REGARD TO SAFETY

1. Owner / Client

- **Provide safe project requirements** – Ensure safety provisions are included in contracts and project specifications.
- **Budget for safety** – Allocate funds for safety equipment, PPE, training, and monitoring.
- **Appoint competent professionals** – Hire qualified contractors, consultants, and safety officers.
- **Ensure legal compliance** – Verify that the project complies with statutory safety regulations (Factories Act, Building & Other Construction Workers Act, OSHA/IS codes, etc.).
- **Monitor safety performance** – Conduct audits or appoint third parties to review site safety practices.
- **Encourage a safety culture** – Promote safety as a priority through policies, notices, and safety committees.

ROLES AND RESPONSIBILITIES IN REGARD TO SAFETY

2. Contractor

- **Prepare and implement safety plan** – Develop site-specific safety programs, method statements, and risk assessments.
- **Provide PPE & safety equipment** – Ensure helmets, boots, harnesses, gloves, goggles, etc., are available and mandatory.
- **Conduct safety training & toolbox talks** – Train workers on hazard awareness, emergency response, and safe work practices.
- **Supervise site activities** – Deploy safety supervisors to monitor daily activities and correct unsafe acts.
- **Maintain site housekeeping** – Keep walkways clear, store materials properly, and remove waste regularly.
- **Report and investigate incidents** – Document accidents/near-misses, find root causes, and implement corrective actions.
- **Comply with statutory obligations** – Follow all safety laws, codes, and labor welfare provisions.

ROLES AND RESPONSIBILITIES IN REGARD TO SAFETY

3. Engineers (Consultant / Site Engineers / Project Engineers)

- **Design engineers**: Ensure that design incorporates safety measures (structural stability, fire safety, scaffolding loads, etc.).
- **Site/Resident engineers**:
  - Monitor contractor's compliance with safety requirements.
  - Inspect scaffolds, formwork, machinery, lifting equipment, and ensure they are safe to use.
  - Verify that method statements and safety plans are followed.
  - Stop unsafe work immediately and instruct corrective actions.
  - Conduct joint safety inspections with safety officers.
  - Maintain safety records, checklists, and ensure quality of safety audits.
- **Coordination** – Communicate safety concerns between owner and contractor, ensuring corrective action.

Minimum Wages Act, 1948

OBJECTIVES

- The Act was enacted to protect the most vulnerable sections of workers (unskilled, semi-skilled, casual labour, etc.).
- **Key Objectives:**
  1. To provide statutory fixation of minimum wages in certain industries.
  2. To prevent exploitation of labour due to unequal bargaining power between employers and employees.
  3. To provide a standard living wage so workers can afford basic human needs (food, shelter, clothing, healthcare, education).
  4. To ensure **social justice** by reducing inequality in wage distribution.
- **Example**: A construction worker in Maharashtra cannot be paid less than the state-notified minimum wage, even if the worker agrees to lower wages.

SCOPE AND COVERAGE

- **Applies to the whole of India** (both Central and State spheres).
- Covers **all workers** in scheduled employments whether employed directly or indirectly (through contractors).
- **Scheduled Employments**:
  - The **First Schedule** of the Act lists employments such as agriculture, construction, textiles, mines, plantations, road transport, brick kilns, etc.
  - Governments can add new employments to this Schedule.
- **Central Government jurisdiction**: Railways, mines, oil fields, ports, and undertakings owned by the Union.
- **State Government jurisdiction**: All other scheduled employments within the state.
- **Excluded Categories**:
  - Government employees with high salaries.
  - Managerial and administrative staff.
  - Employees working in family-owned businesses without formal employment contracts (in some cases).

DEFINITIONS

- **Wages**: Includes all monetary remuneration expressed in cash but excludes housing, electricity, travel allowance, and gratuity.
- **Minimum Wage**: The lowest remuneration fixed by law, below which wages cannot be paid. It ensures sustenance, not luxury.
- **Appropriate Government**:
- **Central Government** → Mines, oilfields, railways, ports.
- **State Government** → Shops, establishments, factories, agriculture.
- **Employee**: Any person employed for hire or reward in scheduled employment, skilled or unskilled, manual or clerical.

FIXATION OF MINIMUM WAGES

- Governments must **fix minimum wages** for all scheduled employments.
- Wages can differ based on:
- Nature of work (skilled, semi-skilled, unskilled).
- Location (urban, rural, tribal area).
- Industry type (e.g., construction vs. plantation).
- Age group (adult, adolescent, child, apprentice).
- **Revision**: Wages must be revised **at least once in every 5 years**.

COMPONENTS OF MINIMUM WAGES

The Act allows wages to be fixed in 3 ways:

1. **Basic Wage only** → A flat cash amount (e.g., ₹350 per day).
2. **Basic Wage + Dearness Allowance (DA)** → To adjust with rise in cost of living (linked to Consumer Price Index).
3. **Basic Wage + DA + Value of Concessions** → For example, supply of subsidized food grains, housing, or fuel in addition to wages.

Example:

•In Maharashtra, a construction worker may get:

- Basic wage = ₹450/day
- DA (linked to inflation) = ₹50/day
- Total Minimum Wage = ₹500/day

PROCEDURE FOR FIXING MINIMUM WAGES

Two methods:

1. **Committee Method**
    1. Government appoints committees and sub-committees including employers, employees, and independent persons.
    2. Committee studies the employment, cost of living, industry profits, etc.
    3. Recommendations are submitted to the government.
2. **Notification Method**
    1. Government publishes draft proposals in the Official Gazette.
    2. Public (employers, workers, associations) may file objections/suggestions within **2 months**.
    3. Government finalizes rates and notifies them.

PAYMENT OF MINIMUM WAGES

- Every employer must pay wages **not less than the minimum wages** fixed by law.
- Even if a worker agrees to accept lower wages, such an agreement is **null and void**.
- Wages must be paid **in cash**. Payment in kind (e.g., food, clothes) is allowed only if:
- Government authorizes it, and
- Value of goods is fairly assessed.

WORKING HOURS AND OVERTIME

- The Act authorizes the government to fix:
  - **Daily hours of work** (generally 8 hours).
  - **Weekly hours** (generally 48 hours).
  - **Rest day** (usually 1 day per week, e.g., Sunday).
- **Overtime**:
  - Wages for overtime must be paid at **double the normal rate** (2x).
- **Example**: If the minimum wage is ₹100 per hour, overtime should be paid at ₹200 per hour.

ENFORCEMENT AND AUTHORITIES

- **Inspectors**: Appointed to check wage records, enter premises, and interview employees.
- **Advisory Boards**:
  - Central Advisory Board → Advises Central Govt.
  - State Advisory Boards → Advises State Govt.
- **Labour Courts/Authorities**: Workers can file claims for underpayment.
- **Claims Procedure**:
  - Worker files claim within 6 months of underpayment.
  - Authority can order recovery of due wages plus compensation (up to 10 times the amount).

PENALTIES

- **Paying less than minimum wages**:
- Imprisonment up to **6 months**, or
- Fine up to **₹500** (States may increase fines; in some states it is ₹10,000+).
- **Other offences** (not maintaining registers, obstructing inspectors, etc.): Fine up to **₹500**.
- **Recovery of unpaid wages**: Authority can order payment of due wages plus damages.

IMPORTANCE OF THE ACT

- Protects labour from **exploitation**.
- Ensures a **decent standard of living**.
- Reduces **income inequality** between skilled and unskilled labour.
- Promotes **industrial peace** by reducing disputes over wages.
- Provides a **legal remedy** for workers to claim dues.
- Encourages fair competition among employers (prevents some from exploiting labour to cut costs).

LIMITATIONS OF THE ACT

- **Coverage is limited** → Only applies to scheduled employments, leaving out many informal sectors.
- **Different rates in different states** → Creates confusion and wage inequality.
- **Weak enforcement** → Many workers in unorganised sectors are still paid less than minimum wage.
- **Delayed revisions** → Sometimes wages are not revised for many years.
- **Inflation issue** → Minimum wages often fail to keep pace with rising prices.

THANK YOU